ADMINISTRATIVE REVIEW TRIBUNAL **2023/3361**

BRISBANE REGISTRY **2023/3363**

2023/4494

VIDA REID
Applicant

SIMON REID
Applicant

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS PURSUANT TO THE ORDERS OF DEPUTY PRESIDENT K MCMILLAN KC DATED 8 SEPTEMER 2025

A. Introduction and overview

1. The Applicant to Application No 2023/3361 (**Ms Vida Reid**) has made an application in the following terms:

   a. Stay of Proceedings: An order that the proceedings in AAT matter 2023/3361 (and in AAT matter 2023/4494, on behalf of FFG) be stayed pursuant to section 41 of the *Administrative Appeals Tribunal Act 1975* (Cth), until it is confirmed that no parallel law enforcement or related investigative action is ongoing that could prejudice the fairness of these proceedings.

   b. Severance of Proceedings: An order that I, VIDA REID's application be severed from, and heard separately to, the applications of Mr. Simon Reid and FFG. In effect, the Applicant seeks to set aside or vary the current direction that these matters be heard together, so that my case (2023/3361) proceeds on its own, distinct track. (For clarity, I, VIDA REID do not seek to affect Mr. Simon Reid's matter (2023/3363) except to the extent necessary to separate it from my own; Mr. Reid remains free to pursue or stay his application as he sees fit.)

2. While the applicant has referred to section 41 of the *Administrative Appeals Tribunal Act 1975* (Cth), it appears from the Applicant's submissions that the Applicant seeks a stay the substantive proceedings by way of adjournment in matters 2023/3361 (Vida Reid and

Commissioner of the NDIS Quality and Safeguards Commission) and 2023/4494 (Forward Focus Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission).

B. Background

3. Ms Vida Reid and Applicant to Application No 2023/3363 (**Mr Simon Reid**) were at various times the director of a number of entities providing NDIS services in Western Australia including the Applicant to Application No 2023/4494, namely, Forward Focused Group Pty Ltd (**FFG**), and Hybrid Hive Pty Ltd (**Hybrid**).

4. On 19 October 2022, Ms Vida Reid was arrested and charged with offences under sections 135.1(3) and 400.9(1) of the *Criminal Code Act 1995* (Cth) in relation to allegations of defrauding the National Disability Insurance Scheme (**NDIS**)[1].

5. On 20 December 2022, a delegate of the **Commissioner** of the NDIS Quality and Safeguards Commission made a banning order prohibiting Ms Vida Reid from having any involvement with or in the NDIS sector for a period of 5 years. That banning order was subsequently varied by another delegate of the Commissioner on 21 April 2023 to the extent the decision varied the legislative basis upon which the banning order was made and its scope[2].

6. On 20 December 2022, a delegate of the Commissioner revoked FFG's NDIS registration and made a banning order prohibiting FFG from providing supports or services to NDIS funding participants for a period of 10 years[3]. This was subsequently varied on 8 June 2023 to a banning order for a period of 3 years[4].

7. The directors of FFG included:

   7.1 Ms Vida Reid between 28 August 2020 to 1 November 2022; and

   7.2 Mr Simon Reid between:

      (a) 28 August 2020 to 3 January 2021; and

      (b) 1 November 2022 to date[5].

8. On 21 December 2022, a delegate of the Commissioner made a banning order prohibiting Mr Simon Reid from having any involvement with the NDIS sector for a period of 5 years[6].

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1 See T07 and T08.

2 T01.1.

3 T72, T73.

4 T71.1.

5 Affidavit of Vida Reid Affirmed in January 2025, VR-1.

6 T64.1.

That banning order was subsequently varied by another delegate of the Commissioner on 21 April 2023[7].

9. On 10 May 2023, Ms Vida Reid and Mr Simon Reid both made an application to the Administrative Appeals Tribunal (**Former Tribunal**) seeking a review of their respective banning orders.

10. On 26 June 2023, FFG made an application to the Former Tribunal seeking a review of its banning order.

11. On 19 July 2023, Deputy President Mischin made orders for the review applications of FFG, Ms Vida Reid and Mr Simon Reid to be joined as associated cases, programmed and heard together and that the evidence in one application, subject to relevance, would be taken as evidence n the other applications.

12. On or about 31 October 2023, the Respondent made an application for a stay of the proceedings in light of the nature of the criminal proceedings of foot against Ms Vida Reid. On 17 January 2024, Deputy President Mischin, made orders adjourning the proceedings pending the termination or resolution of criminal proceedings against Ms Vida Reid.

13. On or about February 2024, the criminal charges against Ms Vida Reid were dropped. Given the circumstances, on 15 May 2024 the Former Tribunal made programming orders to progress the matters to final hearing.

14. On or about 3 October 2024, Ms Vida Reid foreshadowed making an application for a stay of her proceedings. Deputy President Lazanas made orders for Ms Vida Reid and FFG to file any evidence and written submissions by 24 October 2024[8]. The foreshadowed stay application was listed for hearing on 25 November 2024.

15. On 14 November 2024, orders for Ms Vida Reid and FFG to file evidence and written submission by 13 December 2024[9]. An interlocutory hearing was listed for 13 February 2025.

16. On 28 January 2025, Ms Vida Reid attempted to lodge an affidavit and submissions in relation to her own matter and on behalf of FFG requesting a stay. These materials were not sent to the correct registry email address, nor were they sent to Mr Simon Reid by Ms Vida Reid. As a result, the Respondent sent these materials to the correct Registry address and to Mr Simon Reid's then solicitor.

17. On 4 February 2025, Ms Vida Reid wrote to the Respondent and Administrative Review **Tribunal**:

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7 Ibid.

8 Orders of Deputy President Lazanas dated 3 October 2024.

9 Orders of Deputy President K McMillan KC dated 14 November 2024.

17.1 Complaining of a "breach of confidentiality" in relation to the Respondent's conduct in sending her request for a stay, including the affidavit and submissions to Mr Simon Reid's then legal representatives; and

17.2 Requesting that her and FFG's matters be separated from Mr Simon Reid's application.

18. On 13 February 2025, the interlocutory hearing was adjourned to enable the Tribunal to consider Ms Vida Reid's "breach of confidentiality" complaint.

19. On 6 June 2025, the Tribunal dealt with Ms Vida Reid's "breach of confidentiality" complaint and required Ms Vida Reid to file and serve on all parties, any application to stay her proceedings or to sever her proceedings from Mr Simon Reid or FFG along with any supporting documents or submissions by 27 June 2025.

20. On 16 August 2025, Ms Vida Reid filed the current applications.

C. Legal Principles – Adjournments

21. The Tribunal has powers to adjourn matters pursuant to s 82 of the *Administrative Review Tribunal Act 2024* (Cth) (**ARTA**). The Tribunal will not adjourn a hearing date unless it considers that there are good reasons to justify the adjournment[10]. Where the Tribunal adjourns a matter, it will seek to re-list the matter as soon as practicable afterwards[11].

22. The powers of the Tribunal must be considered in light of the objectives of the Tribunal, which require that applications to the Tribunal are resolved as quickly and with as little formality and expense as the proper consideration of the matter before the Tribunal permits[12].

23. There is no automatic right to a stay of civil proceedings merely because concurrent criminal proceedings are pending[13]. While it may be appropriate for the Tribunal to adjourn a matter where concurrent criminal proceedings arise out the same circumstances, there can be no basis for an adjournment where no criminal proceedings have been instituted, and no issues are under active consideration for criminal proceedings[14].

24. The delay of proceedings for an indeterminate period amount of time amounts to a refusal to hear those proceedings[15].

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10 Administrative Review Tribunal (Common Procedures) Practice Direction 2024 at [5.12].

11 Administrative Review Tribunal (Common Procedures) Practice Direction 2024 at [5.15].

12 ARTA, s 9(b).

13 *McMahon v Gould* (1982) 7 ACLR 202 at 206.

14 *Re Social Security, Department of & Pluta* (1991) 23 ALD 317 at [10].

15 *Cadbury UK Ltd v Registrar of Trade Marks* (2008) 107 ALD 316 at [9], [16].

25. Further, where the applicant is not actively pursuing their case, an adjournment may properly be refused[16].

D. Submissions – Adjournment

26. It is relevant to firstly note that Ms Vida Reid is not a director of FFG and has no authority to seek an adjournment on behalf of FFG. Mr Simon Reid is the sole director of FFG. While Mr Simon Reid has indicated his consent to the application[17], he has not sought an adjournment for himself or FFG. The application made on behalf of FFG should therefore be dismissed.

27. The Respondent submits that there is no evidence before the Tribunal that suggest that any criminal proceedings or investigations are currently against Ms Vida Reid. There is therefore no basis for a stay of these proceedings.

28. Further Ms Vida Reid has prolonged the application process having foreshadowed the application in October 2024. Since that date Ms Vida Reid has:

    28.1 Failed to comply with the Tribunal's orders to file documents concerning the application;

    28.2 Caused the anticipated hearing of the application to be vacated twice;

    28.3 Failed to serve documents to Mr Simon Reid and FFG, in circumstances where the proceedings have been joined and where the applications could affect Mr Simon Reid and FFG's proceedings;

    28.4 Raised privacy breach complaints against the NDIS Quality and Safeguards **Commission**; and

    28.5 Made an application to sever her proceeding from Mr Simon Reid.

29. The delay caused by her conduct and the very nature of an application for a stay suggests Ms Vida Reid is seeking to delay the final hearing. Without a proper basis, such conduct is improper and should not be permitted.

30. Ms Vida Reid asserts that a stay should be granted on the basis that:

    30.1 the interactions with the Australian Border Force (**ABF**), and through conversations with her former employees that there is currently an investigation being conducted in relation to Ms Vida Reid;

    30.2 the Respondent's previous position on a stay;

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16 *Cook v ASP Shipping Management Pty Ltd* (2008) 105 ALD 453; *Re Ugur and Australian Human Rights Commission* (2010) 114 ALD 192 at [26].

17 Statement by Mr Simon Reid dated 9 September 2025.

30.3 she would be prejudiced in that she may withhold evidence for fear of self incrimination or future repercussions; and

30.4 the issue of an alleged "privacy breach" is unresolved.

Investigations by Other Agencies

31. Ms Vida Reid raises concerns that there are ongoing investigations involving herself. She points to a number of events which she says indicates that there are ongoing investigations and potential proceedings that will be commenced against her.

32. The first set of incidents relates to interactions with the ABF [18] as she and her family were leaving Australia in September 2024. Ms Vida Reid refers to:

32.1 conversations by Mr Simon Reid with the ABF in relation to the criminal charges against Ms Vida Reid and an assertion that the NDIS and NDIS Minister has asked ABF to search her every time she enters or leaves the country[19];

32.2 how her possessions searched and allegedly copied[20]; and

32.3 how Mr Reid's iphone was not returned on that day[21].

33. In correspondence between the ABF and legal advisers of Mr Simon Reid and Ms Vida Reid[22], the ABF stated that:

33.1 they were entitled to examine goods belonging to Mr Simon Reid and Ms Vida Reid in accordance with the *Customs Act 1901* (Cth); and

33.2 the ABF did not make any copies of their electronic devices.

34. Two other interactions were between the ABF and Ms Vida Reid's daughter as she was leaving and entering Australia between October and November 2024[23].

35. There is nothing from the ABF to suggest that there is an ongoing investigation against Ms Vida Reid.

36. Ms Vida Reid's complaints about the ABF's actions and treatment of her do not equate to a disclosure of any specific investigation or intention to commence proceedings against Ms Vida Reid.

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18 Affidavit of Vida Reid Affirmed in January 2025 at [13] – [39].

19 Ibid at [16].

20 Ibid at [23.9].

21 Ibid at [24]. Mr Simon Reid's iPhone was subsequently returned to him on or about 2 December 2024.

22 Ibid, VR-3.

23 Ibid at [27] – [30].

37. Ms Vida Reid also refers to a call between herself and a former employee, Virginie Fanny-Dullo where Ms Fanny-Dullo was allegedly questioned by NDIS Investigators[24] in or about January 2025.

38. Following these matters being raised by Ms Vida Reid, the Respondent made inquiries with the National Disability Insurance Agency (**NDIA**) in March 2025 and was informed that there was no current criminal investigation pertaining to Ms Vida Reid or to FFG[25].

39. Ms Vida Reid seeks an adjournment until it is confirmed that there are no parallel law enforcement or related investigative action ongoing that could prejudice the fairness of these proceedings. Ms Vida Reid suggests that the Commission should comprehensively clarify that no criminal or fraud related agency (within or beyond NDIS) is investigating her. In effect, Ms Vida Reid seeks assurances that she will not be prosecuted for any criminal charges in the future. This proposal would result in an indeterminate delay of the proceedings which should not be permitted.

40. It is not the Commission's responsibility to seek or provide the assurances that Ms Vida Reid seeks and it is not appropriate for Ms Vida Reid to use the Tribunal or these proceedings to secure such assurances. Nor does the Tribunal have powers to require the Commission to seek out such assurances sought by Ms Vida Reid.

41. Ms Vida Reid bears the onus of demonstrating to the Tribunal that there are good reasons to stay the proceedings. Ms Vida Reid has not adduced any evidence:

    41.1 she has been charged of any criminal proceedings;

    41.2 that there are any current investigations by any government body or authority; or

    41.3 that any matters raised relate to the matters the subject of the review proceedings.

42. In those circumstances there is no basis for a stay of the current proceedings.

Complaints against the Commission

43. Ms Vida Reid has made various allegations against the Respondent or Commission to the effect that the Respondent or Commission have acted aggressively, unethically and has mislead the Tribunal. The Respondent denies any impropriety by the Respondent or Commission and does not intend to address the vague allegations which have no bearing on the application.

44. Ms Vida Reid asserts that there was some impropriety when Ms Karen Haywood from the Commission attending the hearing on 6 June 2025. Ms Haywood was identified as an investigator with the Commission. Ms Reid did not raise any issues with Ms Haywood's

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24 Affidavit of Vida Reid Affirmed in January 2025 at [31] – [3].

25 Letter dated 11 March 2025 from AGS to the Tribunal and Ms Vida Reid attached to her submissions filed 16 August 2025.

attendance at the hearing. The Commission is entitled to have its representatives attend any hearings on its behalf. It may be that Ms Vida Reid misunderstood Ms Haywood's role, given her title, however, there was nothing improper with her attendance at the hearing.

45. Ms Vida Reid complains that given there is no ongoing criminal proceedings, there is no justification for her ongoing ban and that the Commissioner should revise or lift the ban. Given the review proceedings remain on foot, the Commissioner currently has no power to amend or set aside the banning order[26]. The question of whether the banning order should be affirmed, varied, or set aside is a matter for the Tribunal to decide.

46. The proper course to have this matter determined and finalised would be to proceed with a final hearing.

The Commissioner's Previous Position

47. The circumstances of this application for a stay are materially different to the circumstances that existed in 2023. The Respondent's previous position was based on the fact that there were criminal charges laid against Ms Vida Reid. There is no evidence of any criminal charges at this stage. Each application must be considered on the relevant facts that exist at the time.

Privilege against self-incrimination

48. The privilege against self-incrimination is a substantive common law right[27] that applies regardless of whether any criminal proceedings are on foot. The privilege may be abridged or waived by statute[28], however there is no provision in the ARTA which does so. A person cannot be compelled to answer any question or to produce any document or thing if to do so may tend to bring them into the peril and possibility of being convicted as a criminal[29]. Whether or not a question or answer will expose a person to such a liability must be determined at the time of the hearing[30]. No adverse inference may be drawn against a person asserting a claim of privilege against self-incrimination[31].

49. Ms Vida Reid may seek to exercise the privilege against self-incrimination at a final hearing. Whether a question or document will incriminate her can only be determined during a final hearing. The issue is therefore not a legitimate basis to stay the proceedings.

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26 ARTA, s31(1).

27 *Reid v Howard* (1995) 131 ALR 609 at 616, 618.

28 Ibid at 618.

29 Ibid at 616.

30 *Brebner v Perry* [1961] SASR 177 at 181, *Re Bolton and Australian Securities and Investment Commission* [2018] AATA 976 at [54].

31 *Dolan v Australian & Overseas Telecommunications Corporation* (1993) 31 ALD 510 at 519.

Alleged Privacy Breach

50. On 6 June 2025, the Tribunal addressed Ms Vida Reid's complaint of an alleged privacy breach. The Tribunal informed Ms Vida Reid, that the complaint was not a matter that could be determined by the Tribunal. The issue is therefore not a legitimate basis to stay the proceedings.

E. Legal Principles – Severance of proceedings

51. The principles relevant to an application to separate parties to a proceeding are set out in detail in *Australian Securities and Investments Commission v Axis International Management Pty Ltd* [2009] FCA 250 at [9] – [13]:

> [9] The relevant principles are not controversial. The basic principle, which ought to guide the exercise of discretion, is that "the court should take whatever course seems to be most conducive to a just resolution of the disputes between the parties, but having regard to the desirability of limiting, so far as practicable, the costs and delay of the litigation": *Bishop v Bridgelands Securities* (1990) 25 FCR 311 at 314. This case involved an application for joinder of additional applicants, which raises similar considerations to the present one.
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> [10] If inconvenience is alleged, it must be shown that there are factors which make it inconvenient for there to be a joint trial, rather than that a separate trial is more convenient: *Mann v Board of Health (ACT)* (1996) 67 FCR 383 at 399F.
>
> [11] Disadvantages to a defendant seeking a separate trial, including the possibility of unfairness, must be weighed against identified advantages to ASIC and to the defendants as a whole and the efficient use of the court's resources having regard to the commonality of issues raised by each claim: *Dean-Willcocks v Air Transit International Pty Ltd* (2002) 55 NSWLR 64 at [34]. The court should be concerned to determine what is the most efficient use of the resources of the parties and also of the court: *Carter v Commissioner of Taxation* (2001) 109 FCR 215 at [23].
>
> [12] Factors which have been held to weigh in favour of exercising the discretion to order separate trials include:
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> (a) the issues concerning the party seeking the separate trial are distinct and discrete: *Bishop v Bridgeland Securities* at 314;
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> (b) a joint trial will involve the respondent in the expense of being present at the trial of questions with which they are not concerned and it would be unfair for the respondent to be compelled to participate in a large and costly proceeding where it has only marginal involvement: *Hinze v Zed* [1926] SASR 77 at 84; *Knight v Beyond Properties Pty Ltd (No 2)* [2006] FCA 192 at [30] and *Newman v Hold Pty Ltd* [2001] VSC 282 at [17].

[13] Factors which have been held to militate against making such an order include:

(a) the potential overlap of evidence and argument, including the need for the same witnesses to be called at both trials: *National Mutual Property Services (Australia) Pty Ltd v Citibank Savings Ltd* [1996] FCA 1228 at [17]; *Dean-Willcocks v Cmr of Taxation* 2003 45 ACSR 298 at [18];

(b) the interrelationship between issues which are not capable of being resolved independently of each other: *Mann v Board of Health (ACT)* at 400F;

(c) the potential disqualification of the judge that hears the first trial, if adverse findings are made as to the creditability of witnesses: *National Mutual Property Services (Australia) Pty Ltd v Citibank Savings Ltd* at [16]; *Dean-Willcocks v Cmr of Taxation* at [18]; and

(d) the undesirability of inconsistent findings as to the same transactions: *Henschel v Brittany Crepe Co Pty Ltd* [1981] Qd r 173 at 175–176.

F. Submissions – Severance of proceedings

The Banning Orders

52. The Tribunal made orders to have the three matters joined and heard together on 19 July 2023. In doing so, the Tribunal has already considered the relevant factors necessary to join the proceedings. The only factors that have changed since July 2023 are that:

52.1 the criminal proceedings against Ms Vida Reid have been dropped; and

52.2 Ms Vida Reid, Mr Simon Reid and FFG are currently self-represented.

53. None of these matters materially impact the question of whether the proceedings should remain joined.

54. The respective banning orders made against Ms Vida Reid, Mr Simon Reid and FFG arose out of conduct relating to FFG and Hybrid in circumstances where:

54.1 the directors of FFG included:

(a) Ms Vida Reid between 28 August 2020 to 1 November 2022; and

(b) Mr Simon Reid between:

(i) 28 August 2020 to 3 January 2021; and

(ii) 1 November 2022 to date[32].

54.2 The director of Hybrid included:

(a) Ms Vida Reid between 1 December 2021 to 21 August 2022; and

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32 Affidavit of Vida Reid Affirmed in January 2025, VR-1.

(b) Mr Simon Reid between 17 February 2022 to date.

54.3 Claims were made by FFG and Hybrid to the NDIA for supports and services where participants have complained that they have not been provided with the service alleged by FFG or Hybrid. These include participants such as:

(a) Ms Meghan Goodwin, for services claimed during the period between January 2022 and May 2022[33]. Ms Goodwin's claims are supported by the statements of Ms Karen Ruth Canalija Marasigan[34], Ms Tabitha Sadler[35] and Ms Danica Rochelle Hall[36];

(b) Sarah Jane Cudlow, for services claimed during the period between October 2021 and July 2022[37];

(c) Max Teague, for services claimed during the period between February 2021 to March 2021[38];

(d) Yvonne Harrison between March 2021 and August 2022[39].

(e) Hrimnir Benediktsson, for services claimed during the period between June 2022 and August 2022[40];

(f) Charlie Harrison, for services claimed during the period between May 2021 and August 2022[41]; and

(g) Bassam Haidar, for services claimed during the period between April 2022 and April 2022. Mr Haidar's claims are supported by the statement of Ms Janine Hall[42].

54.4 Various complaints were made by participants including allegations of intimidation or harassment[43].

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33 T18.

34 T38 at [26], Annexures A – E.

35 T9.20.

36 T21 at [21] – [22].

37 T11.

38 T12.

39 T39, T21 [23] – [26].

40 T29, pg. 797.

41 T33.

42 T20, T9.11 and T9.14.

43 T9.14, T9.23 and T18.

54.5 Mr Simon Reid and Ms Vida Reid became involved with Dream Big Employment Pty Ltd, which was involved with the provision of NDIS services, while their banning orders were in effect[44].

54.1 In considering whether the respective banning orders against Ms Vida Reid and Mr Simon Reid should be varied, amended or set aside, it will be necessary for the Tribunal to consider whether Ms Vida Reid and Mr Simon Reid are suitable to be involved in the provision of services to people with a disability pursuant to section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* (Cth) which will require findings relating to the allegations raised above, including

54.2 whether any NDIS funding was made or received, in circumstances where the services to which the funding was claimed, had not been provided to the participant;

54.3 whether Mr Simon Reid or Ms Vida Reid had intimidated or harassed any participants; and

54.4 whether Mr Simon Reid or Ms Vida Reid had contravened their respective banning orders.

55. Given Mr Simon Reid and Ms Vida Reid were at various times directors of both FFG and Hybrid, there will be a significant overlap between the proceedings in terms of the allegations against each party and the witnesses that may be called.

56. Ms Vida Reid asserts that she will be prejudiced if the matters are heard together given Mr Simon Reid and FFG have more legal resources. It is unclear why such a situation would cause any prejudice. In any event, it should be noted that previously all parties were represented by the same lawyer and all the applicants are currently unrepresented.

57. Ms Vida Reid also raises concerns of the logistics of multi-party proceedings and the concern that the presiding member will not be able to determine the matter based on the facts relevant to her alone. Those are matters that are dealt with regularly by the Tribunal and does not form a proper basis for an application to sever the proceedings.

58. The matters raised by Ms Vida Reid do not demonstrate that it is inconvenient for there to be a joint trial. Conversely, having multiple proceedings over the same issues and with the same witnesses will:

58.1 not be an efficient use of the Tribunals resources;

58.2 require witnesses to give their testimony multiple times;

58.3 runs the risk that multiple proceedings will result in inconsistent findings; and

58.4 not achieve the objectives of the ARTA.

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44 T62.1 at [52].

59. For those reasons the Commission submit that Ms Vida Reid's application to sever her proceedings from Mr Simon Reid and FFG be dismissed.

17 September 2025

J MOORE
Counsel for the Respondent